

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 25-04

CHINA UNITED LINES, LTD,
COMPLAINANT,

v.

AMAZON.COM SERVICES LLC

and

AMAZON LOGISTICS INC.

and

BEIJING CENTURY JOYO COURIER SERVICE CO., LTD.

RESPONDENTS.

DECLARATION OF BRYCE M. CULLINANE IN SUPPORT OF
MOTION TO COMPEL RESPONDENTS TO PRODUCE DOCUMENTS IMPROPERLY
WITHHELD AS PRIVILEGED

I, Bryce M. Cullinane, declare as follows:

1. I am an attorney duly admitted to practice before this Tribunal. I am employed by Theodora Oringher PC, attorneys of record for China United Lines, Ltd., (“China United”), Complainant in this matter. If called as a witness, I could and would competently testify to all the facts herein based on my personal knowledge, except where stated upon information and belief.

2. I submit this declaration in support of China United’s Motion to Compel Respondents to Produce Documents Improperly Withheld as Privileged (the “Motion”).

3. On October 16, 2025, I corresponded with counsel for Respondents, Amazon .com Services, LLC, Amazon Logistics, Inc., and Beijing Century Joyo Courier Service Co., Ltd. ("Amazon") regarding the privilege designations Amazon imposed upon many of the documents relevant to this proceeding. I stated that Amazon's privilege designations and document withholding was improper, and its privilege log descriptions were insufficient. I requested, in good faith, that Amazon provide documents it had withheld from its productions. A true and accurate copy of this correspondence is attached hereto as **Exhibit A**.

4. Counsel for Amazon provided a revised privilege log on October 31, 2025. A true and accurate copy of this privilege log is attached hereto as **Exhibit B**.

5. On November 4, 2025, I corresponded with counsel for Amazon again, raising issues related to Amazon's October 31, 2025 privilege log and withholding of documents relevant to this proceeding. I explained, among other topics, that Amazon failed to invoke a sufficient basis to invoke the attorney client privilege for myriad conversations authored and circulated among non-attorneys, Amazon had improperly asserted that non-attorney communications "reflected legal advice," and had not provided the titles and roles of non-attorney participants in the email threads Amazon had withheld. I noted that if Amazon did not provide a fulsome and compliant privilege log, China United would move to compel. A true and accurate copy of this correspondence is attached hereto as **Exhibit C**.

6. On November 11, Amazon provided a response to my November 4, 2025 letter. Amazon asserted that its privilege log was accurate, and refused to produce any documents it had thus far identified as privileged. A true and accurate copy of this correspondence is attached hereto as **Exhibit D**.

7. On November 14, Amazon provided an updated privilege log, which included the title of documents, however it did not include the title of any non-attorney participants and provided only vague descriptions of documents withheld. A true and accurate copy of this privilege log is attached hereto as **Exhibit E**.

8. On January 8, 2025, I met and conferred with counsel for Amazon by phone. During the phone conversation, counsel for Amazon stated that almost the entirety of Amazon's decision to terminate for cause was a legal decision, not a business decision. Counsel for Amazon indicated that Amazon would not produce any of the documents it had withheld as privileged.

9. Former Amazon employee Becky Moore testified that at least seven non-attorneys were involved in the decision to terminate China United's service contract for cause: Doug Heimburger, John Felton, David Cardadeiro, John Anfinson, Becky Moore, Connor Klosky, and Michael Doblinger. Moore T. 35:4-19. A true and accurate excerpt of this testimony is attached hereto as **Exhibit F**

10. Amazon's corporate representative, David Cardadeiro, testified that Amazon's decision to terminate China United's service contract for cause was a business decision, not a legal decision. Cardadeiro Tr. 48:24-49:8. A true and accurate excerpt of this testimony is attached hereto as **Exhibit G**.

11. Meet and confer efforts with Amazon having failed, the instant Motion became necessary. Problematic entries from Amazon's privilege log that should be produced and/or unredacted are highlighted in the privilege log attached as **Exhibit H**.

[signature page follows]

I declare under penalty of perjury that the foregoing is true and correct.

Executed on this 13th day of February, 2026, at Costa Mesa, California.

A handwritten signature in blue ink, appearing to be 'BC' followed by a long horizontal stroke.

Bryce Cullinane

PROOF OF SERVICE

I, David Collins, hereby certify that on this 13th day of February, 2026, a copy of the foregoing **Declaration of Bryce M. Cullinane in Support of Motion to Compel Respondents to Produce Documents Improperly Withheld was Privileged** was served via email, on the following:

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/s/ David P. Collins

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